

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR JULY 14, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1. 9:00 AM	MSP14-01155 MATTER OF: THE NATALIE A BENN TRUST DATED 12-29-12 HEARING IN RE: PETITION FOR SETTLEMENT OF 7TH ACCOUNT FOR PERIOD FROM 1-1-23 TO 12-31-24 & FOR APPROVAL OF TRUSTEE FEES & ATTY FEES FILED BY PETER D LANGLEY ON 3-16-26
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-- See also Line # 2 and 17 --

Need appearances

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COURT CALENDAR FOR JULY 14, 2026
DEPARTMENT 38
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2. 9:00 AM	MSP14-01156 MATTER OF: THE MARVIN S BENN REVOCABLE TRUST HEARING IN RE: PETITION FOR SETTLEMENT OF 7TH ACCOUNT FOR PERIOD FROM 1-1-23 TO 12-31-2024 & FOR APPROVAL OF TRUSTEES FEES & ATTYS' FEE FILED BY PETER LANGLEY ON 3-17-26 -- See also Line # 1 and 17 -- Need appearances
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3. 9:00 AM	P23-01695 ESTATE OF: VINCENT RICHARD UJDUR HEARING IN RE: PETITION FOR FINAL DISTRIBUTION ON FIRST AND FINAL ACCOUNTING Need appearances to report status, including mediation ordered 3-10-2026 Note: Objector, Amanda Perez's Objection filed 12-11-2025.
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4. 9:00 AM	P23-02232 MATTER OF: THE NUELLE JONES MINOR'S SETTLEMENT TRUST HEARING IN RE: PETITION TO APPROVE 1ST ACCOUNT & REPORT OF TRUSTEE FROM 5-21-24 THROUGH 5-31-25, INCREASE BOND, & APPROVE TRUSTEE & ATTY FEES FILED BY HEATHER FISHER ON 3-16-26 Need: Bond presented for filing before Order will be signed.
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5. **P24-00346** **MATTER OF: PATRICIA BYRD CANSON LIVING TRUST, DATED AUGUST 13, 2023**
9:00 AM HEARING IN RE: MOTION FOR SUMMARY JUDGMENT FILED BY STEVEN A SMITH

Need appearances

Tentative Ruling: Steven Smith's Motion for Summary Judgment is DENIED WITHOUT PREJUDICE. The court finds that notice of the date and time of the hearing on the Motion was insufficiently provided by the moving party. The record indicates that the Motion (including a Proof of Electronic Service) was submitted for filing on March 18, 2026. The Proof of Service indicates that the moving papers were electronically served on March 18, 2026. The court's record also indicates that the documents submitted for filing on March 18, 2026, were not processed until the next day, March 19. Under the court's calendaring procedures, it is not possible for a hearing date to have been assigned to the Motion for Summary Judgment until it is processed by the court clerk's office. Therefore, as indicated in the late-filed Opposition to the Motion (which the court will consider pursuant to Rule of Court 3.1300(d)) it is not possible for the service copy of the documents electronically served on March 18 to include the information required by Rule of Court 3.1100(b), including the hearing date. The record indicates that no Amended Notice of Motion was ever timely filed and served showing the hearing date. The only document filed by Mr. Smith to indicate the hearing date was a Notice of Hearing filed on July 6, 2026. The Proof of Service attached to that Notice of Hearing does not indicate any date that the Motion for Summary Judgment (with the hearing date) was served. There is no document showing that the Motion, including the hearing date, was served by the deadline set forth in Code of Civil Procedure section 437c(a)(2).

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6. 9:00 AM	P24-00529 ESTATE OF: KENNETH JENKINS HEARING IN RE: MOTION FOR AUTHORIZATION OF LODGED WILL RETRIEVED BY EXPERT; DECL OF NOE MARIE CLARATY FILED BY KENNETH JENKINS JR ON 3-18-26 Need: 1. Appearances 2. Proof of mailing to Linda Jenkins at address in motion. Proof of Service attached to Notice filed 4-9-2026 reflects mailing to an address other than that listed in motion. 3. Proposed Order
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7.	P24-01994	MATTER OF: DAVID COOPER, TRUSTEE OF THE LAWRENCE AND TAKA BRENNAN FAMILY TRUST DATED JANUARY 5, 2010
9:00 AM	HEARING IN RE: TRIAL SETTING CONFERENCE (PER ORDER FILED 02/10/26)	
Need appearances to report status		

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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COURT CALENDAR FOR JULY 14, 2026
DEPARTMENT 38
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| 8.
9:00 AM | P25-00895 ESTATE OF: GEORGE MCATEE
HEARING IN RE: FINAL PETITION FOR DISTRIBUTION FILED ON 03/17/26 BY PAMELA QUEZADA

Need:
<ol style="list-style-type: none">1. Proof of mailing Notice of Hearing and copy of petition to Probate Advance at address listed in petition, and Inventory and Appraisal. PrC §§ 1202, 8803.2. Evidence of agreement to distribution of vehicle to petitioner in lieu of statutory fees3. Verified declaration by petitioner to include sale price of real property so court can determine whether there was a loss on sale that should be included in statutory fee calculation4. Verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705. Specifically, must state any loss on sale as relates to maximum statutory fees allowable.5. Revised, proposed Order as needed in resolution of above |
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DEPARTMENT 38
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9. 9:00 AM	P25-01539 ESTATE OF: HUGH HARVEY HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA FILED ON 08/29/25 BY ROSITA O. HARVEY Need: 1. Appearances 2. Proof of mailing Notice of Petition to Administer Estate and copy of petition to Mount Diablo Audubon Society or waiver of notice. PrC § 8110; LR 7.151(e)
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10.

P25-01996

ESTATE OF: ELOUISE SEWELL

9:00 AM

HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED FILED BY SALENA SEWELL ON 11/07/25

Petitioner, daughter, still must do the following:

1. Appear at the hearing
2. File Proof of Publication. PrC § 8120
3. Have a copy of the Petition for Probate mailed to all persons entitled to receive notice, including notice that will is lost. PrC § 1202; LR 7.151(e)
4. File a verified declaration to address Item # 3.f. (whether decedent died intestate or testate)
5. File a verified declaration to address Item # 5.a.(5)(a) or 5.a.(5)(b) (whether decedent is survived by a natural or adopted child or natural adopted by a third party)
6. File a verified declaration by petitioner to include Attachment 3.f.(2) (copy of will), not attached as indicated. PrC § 8002
7. Lodge Original Will (w/legal process). PrC § 8200
8. File evidence to overcome presumption of revocation by the fact that the originals cannot be located. PrC § 6124
9. File Waiver of Bond by Heir or Beneficiary on mandatory Judicial Council Form DE-142 by all heirs or bond will be fixed at \$215,000.00. PrC § 8481
10. Submit Proposed Order for Probate Form DE-140 with copy of Will attached, if lost will is to be admitted

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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11.

9:00 AM

P25-02059

ESTATE OF: DOROTHY MADDEN

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION FILED ON 11/17/2025 BY FREDERICK MADDEN

Petitioner, son, still must do the following:

1. Appear at the hearing
2. File Proof of Publication. PrC § 8120

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR JULY 14, 2026
DEPARTMENT 38
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12.

9:00 AM

P25-02147

ESTATE OF: DAVID RATH

HEARING IN RE: PETITION FOR PROBATE OF WILL & FOR LETTERS TESTAMENTARY FILED ON 12-2-25
BY MELANIE DAE RATH

Need:

1. Corrected Proof of Subscribing Witness Form DE-131 with copy of will attached. Proof filed 3-13-2026 does not include Attachment 1. PrC § 8220.

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13.

9:00 AM

P26-00911

ESTATE OF: STANFILL, PAMELA LORRAINE

HEARING IN RE: PETITION TO DETERMINE SUCCESSION TO PRIMARY RESIDENCE FILED ON 05/15/26
BY TIFFANY MARIE HELMICK

Need:

Order Determining Succession to Primary Residence Form DE-315

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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14.

9:00 AM

P26-00975

ESTATE OF: WILSON, JOSEPH BENJAMIN

HEARING IN RE: PETITION TO DETERMINE SUCCESSION TO PRIMARY RESIDENCE FILED BY DANETTA WILSON ON 5-28-26 PROBATE PETITION DETERMINE SUCCESSION OF REAL PROPERTY

Petitioner, spouse, still must do the following:

1. Appear at the hearing
2. File a verified declaration by petitioner to address petition Item # 9.a.(3) or 9.a.(4) (whether decedent is survived by a registered domestic partner)
3. File a verified declaration by petitioner to address petition Item # 9.a.(7) or 9.a.(8) (whether decedent is survived by issue of a predeceased child)
4. File a verified declaration by petitioner to complete petition items # 8 and 10
5. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 13153
6. File Inventory and Appraisal. PrC § 13152(b)
7. File Maximum Values for Small Estate Set-Aside Judicial Council Form DE-300
8. File a verified declaration by petitioner to include a statement of decedent's interest in the property, including facts showing that the property was decedent's primary residence in California. Attachment 11 is incomplete.
9. Submit Order Determining Succession to Real Property Judicial Council Form DE-315

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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15.	P24-00028	MATTER OF: ALBERT D. SEENO, JR. AND SANDRA L. SEENO EDEN VALLEY TRUST FOR ALBERT D. SEENO III AND THE ALBERT D. SEENO, JR. AND SANDRA L. SEENO EDEN VALLEY TRUST FOR DAVID T. SEENO
9:00 AM	HEARING IN RE: STATUS UPDATE FILED BY DAVID T SEENO	
		-- See also Line # 16 --
	Need appearances to report status	

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16. P24-00908 IN RE: THE ALBERT D. SEENO, JR. AND SANDRA L. SEENO PCI TRUST FOR DAVID T. SEENO

9:00 AM HEARING IN RE: MOTION OF DAVID SEENO TO INSTRUCT TRUSTEE TO DISTRIBUTE TRUST FUNDS
FILED ON 7-2-25 BY DAVID SEENO

-- See also Line # 15 --

Need appearances

Notes:

1. Trustee Ronald D. Hawkins' Opposition/Objections filed 11-4-2025.
2. Notice of Appeal filed 5-12-2026.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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17.	MSP16-01074 THE BENN GRANDCHILDREN'S TRUST
9:00 AM	HEARING IN RE: PETITION FOR SETTLEMENT OF SIXTH ACCOUNT FILED ON 03/17/2026 BY PETER D LANGLEY
	-- See also Line # 1 and 2 --
	Need appearances